CLUB PAMOJA BYLAWS

Club Pamoja, owned and operated by AvariHQ LLC

Effective Date: October 29, 2026

Member: _____ | Document date: _____

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ARTICLE I. NAME AND MISSION

(i) NAME:

The name of the organization shall be CLUB PAMOJA, herein referred to as "Club Pamoja." Club Pamoja is owned and operated by AvariHQ LLC.

(ii) VISION:

To strengthen community resilience through collective financial stewardship and to embrace the unique value of staying connected as Kenyans and friends of Kenya in the diaspora.

(iii) MISSION:

To provide a secure platform for Members to offer financial and emotional support to one another during times of bereavement.

(iv) CLUB MOTTO:

"Tuko Pamoja" - We are together.

(v) NONDISCRIMINATION POLICY:

Club Pamoja is committed to functioning in an environment in which all individuals are treated with respect and dignity. Each Member shall be served in a professional manner and in an atmosphere that promotes equal treatment and fairness. Any unlawful discriminatory practices, including any forms of harassment, are prohibited. Further, it is the policy of Club Pamoja to ensure equal adjudication of any benefits due to each Member irrespective of race, color, religion,

sex, sexual orientation, gender identity or expression, disability, marital status, national origin, genetic information or any other characteristic protected by law, except where this conflicts with other substantive provisions of these Bylaws.

(vi) DEFINITIONS:

In these Bylaws: "Administrator" means AvariHQ LLC; "Portal" means the Member Portal at app.clubpamoja.com; "Campaign" means a bereavement contribution campaign for an approved, validated covered death; "Activation Date" has the meaning in Article VIII(i)(d); "Formal Notice" has the meaning in Article V(iv); "termination of membership" is the standard term for the formal ending of membership (see Article V(ii)); a "Member in good standing" is a Member whose membership has not been terminated and who satisfies the applicable membership requirements and obligations under these Bylaws, and a genuine, unresolved payment dispute is not automatically treated as misconduct or as conclusive proof that a Member is not in good standing (good standing creates no undisclosed eligibility restriction or additional fee); and a "Participating Member" is a Member who satisfies the applicable eligibility requirements and is required under these Bylaws to participate in the contribution for the specific approved bereavement event.

(vii) NATURE OF CLUB PAMOJA:

Club Pamoja is a Kenyan diaspora mutual-aid and community-support group built on the spirit of harambee: Members coming together to support one another during bereavement and, where formally adopted under Article II(ii), other community needs. Club Pamoja is not intended to operate as an insurance business or to sell insurance products. This statement describes Club Pamoja's intended purpose; it is not a legal determination of how the arrangement is classified under applicable law.

ARTICLE II. OBJECTIVES

(i) MUTUAL FINANCIAL AID:

Club Pamoja shall mobilize financial contributions among Members to support the financial needs of a fellow bereaved Member under specific circumstances, namely: ONLY in the death of a Member or a Member's immediate family as declared on the Beneficiary Form at the time of the Member's registration in Club Pamoja. Immediate family is defined as SPOUSE, or a biological or legally adoptive PARENT, a biological or legally adopted CHILD, a biological or legally adopted SIBLING. To this extent Club Pamoja SHALL NOT cover half-siblings, stepparents, or stepchildren.

(ii) ADAPTIVE GOVERNANCE:

To remain a dynamic organization by undertaking any further objectives formally adopted by the Members that align with our vision of diaspora unity and stewardship.

(iii) NATURE AND LIMITS OF ASSISTANCE:

Any assistance provided through Club Pamoja is a community mutual-aid contribution. It is not guaranteed and no fixed or minimum amount is promised. The amount of any assistance depends on the applicable eligibility requirements, validation of the event, the number of Members who participate, the contributions actually collected, deductions permitted under Article IX(ii), and the program rules in these Bylaws. Club Pamoja does not promise to replace or cover any actual expense.

ARTICLE III. MEMBERSHIP

(i) JURISDICTION:

Club Pamoja Membership is drawn from within the 50 United States and the District of Columbia. A Member shall retain Membership after relocation elsewhere as long as they remain in compliance with these Bylaws.

(ii) ORGANIZATION:

Club Pamoja is owned and operated by AvariHQ LLC.

(iii) ENROLLMENT:

a) Open enrollment. Club Pamoja uses open enrollment, subject to the applicable membership eligibility requirements in these Bylaws. Eligible applicants may apply directly without a referral. A referral is optional and is not a condition of applying or joining. The application form asks, "Were you referred by a current member?" and, if the applicant answers yes, requires the referring Member's full name.

b) Application fee. Each applicant shall pay a one-time Application fee of twenty dollars ($20) for the initial audit of Identity and Beneficiary documents. The Application fee is due when the application is submitted and is non-refundable, except where a refund is required by applicable law (see Article VI(ii)).

c) Activation fee. Upon successful verification, a one-time Activation (membership) fee of sixty dollars ($60) is required to activate Membership within Club Pamoja. The Activation fee is due after verification and before Membership is activated, and is non-refundable, except where a refund is required by applicable law (see Article VI(ii)). The Application fee and the Activation fee are separate charges; payment of one does not satisfy the other. A former Member who is readmitted after voluntary withdrawal pays only the Readmission fee under Article VII(i)(j) and does not pay the Application fee or the Activation fee again.

d) Applications and Activations shall be completed online via the Member Portal (app.clubpamoja.com) by filling out the designated forms.

e) An applicant must be residing in the U.S.A. at the time of application.

(iv) MEMBERSHIP AFFILIATION:

a) Full Membership shall be open to anyone of Kenyan descent or related to anyone of Kenyan descent (i.e., by marriage or other kinship).

b) Membership shall be voluntary, continuous and non-expiring, unless a Member violates these Bylaws or fails to meet the Member's obligations as established.

c) To avoid any ambiguity, in Club Pamoja, ONE individual shall make for ONE Member.

d) A Member shall have attained at least eighteen (18) years of age.

e) All Members MUST submit, via the Member Portal, signed copies of Club Pamoja's Bylaws, the Beneficiary Form and any other required document before being eligible for Club Pamoja's benefits (see Article VIII(i)(d) for when eligibility begins).

ARTICLE IV. MEMBERSHIP BENEFIT

(i) DEATH OF A MEMBER:

a) In view of the rising expenses in the US, Club Pamoja shall facilitate contributions to assist the family of the deceased Member with some of those expenses, subject to Article II(iii).

b) In the event of the death of a Member, each Participating Member shall contribute ninety dollars ($90), being three times the per-Member contribution for a covered family member (thirty dollars, $30) described in IV(ii)(b), subject to eligibility and program rules. Amounts collected, net of the deductions permitted under Article IX(ii), shall be paid to the beneficiary or the estate of the deceased as pre-designated. If the pre-designated beneficiary is not domiciled in the USA, the Administrator shall collect the proceeds and relay them as pre-designated.

c) If the deceased Member has any blood relative(s) or spouse in Club Pamoja, those Members SHALL NOT receive any additional benefits from the Members beyond the amounts provided for in IV(i)(b).

(ii) BENEFITS TO COVERED PERSONS:

a) Club Pamoja benefits shall not be construed or calculated as a source of enrichment for Members, their relatives or dependents. Instead, they are a token of consolation and comfort to help alleviate financial stress during the grieving process. In this regard, all bereavement events shall be MANDATORILY VALIDATED.

b) The contribution per covered death event is currently ninety dollars ($90) per Participating Member for the death of a Member and thirty dollars ($30) per Participating Member for the death of a covered registered immediate family member, in each case subject to the applicable eligibility and program rules. These amounts are reviewed each April or as otherwise determined by the Administrator, and any change takes effect only through notice under Article IX(iv). Administrative deductions of $3 per participating Member's contribution

(covered immediate family member) and $5 per participating Member's contribution (death of a Member) are set out in Article IX(ii) and are separate from third-party payment processing fees.

(iii) SOCIAL EVENTS:

a) In celebration of Club Pamoja's culture and unity, Club Pamoja shall facilitate an annual Summer Picnic at the Members' expense. The date and venue shall be determined by the Members.

ARTICLE V. MEMBERS OBLIGATIONS

(i) MEMBERS OBLIGATIONS:

a) All Members shall provide their official names, current emails and phone numbers to the Administrator for official use and communication purposes.

b) All contributions shall be processed through the Member Portal (app.clubpamoja.com) via the centralized invoicing system (Card or ACH). Payment is due within four (4) business days of the bereavement notice. Payment deadlines are at 11:59 p.m. Eastern Time on the stated due date, unless a different deadline is expressly stated in the relevant notice, and the due date and time zone shall be stated to the Member. The Administrator may adjust the window for banking holidays or scheduled system maintenance and shall post any adjustment on the Portal.

c) Payments and distributions are processed through the payment processor or financial institution designated by Club Pamoja, subject to applicable law and the provider's applicable terms. Following Campaign closure, the bereaved Member or the designated Fiduciary will receive instructions for providing the information needed for distribution. No specific provider, payout date, processing time or availability of funds is promised.

d) To remain an active Member, each Member who is a Participating Member for a Campaign must contribute to that Campaign. A Member's membership is terminated for nonpayment, effective immediately, when both of the following have occurred: (1) the applicable payment period has expired, and (2) a Formal Notice (Article V(iv)) has been sent to the Member. No additional grace period applies. A chargeback, payment dispute or processor reversal is handled under Article V(v) and is not by itself final nonpayment.

e) If, under clause (d), a Member's membership is terminated for nonpayment, the Member forfeits the right to receive benefits for any death occurring after termination.

f) Notwithstanding clause (e), any Member who has received a benefit from Club Pamoja must continue contributing for a minimum of one (1) year following the date of that benefit. Where a Member has received multiple benefits, this one-year period applies independently to each instance even if Membership is terminated under clause (e).

g) In spousal situations, Club Pamoja recognizes only one husband or wife, who shall be designated on the Beneficiary Form.

h) It is the Member's responsibility to update the Beneficiary Form with the Administrator after any life event (such as the birth of a child, divorce, marriage or re-marriage). The Beneficiary Form is a binding record. If it is not properly completed and submitted, benefits may be forfeited.

i) Each Member MUST designate at least one beneficiary who shall collect the Member's benefits in the event of the Member's death.

j) Whenever any claim is in doubt, it is the Member's responsibility to provide all necessary documentation and prove the claim to Club Pamoja before benefits are solicited.

k) A Member MUST submit Club Pamoja's benefit form via the Member Portal before benefits can be administered.

l) A Member MUST submit a copy of a government-issued DL/ID/PP for self and for the beneficiary when filing for benefits.

m) In all cases of burial benefits where death occurs outside the U.S.A., it is MANDATORY that the death be advertised in a local newspaper where the death occurs (in Kenya, the Daily Nation or Standard newspapers) and that an original full page of the newspaper carrying the advertisement be submitted to the Administrator within seven (7) days from the date the death notice is made on the Club Pamoja forum.

n) A copy of a burial permit or death certificate may be accepted as proof of death in lieu of the newspaper advertisement.

(ii) CESSATION OF MEMBERSHIP:

A person ceases to be a Member of Club Pamoja by one or a combination of the following:

a) Termination of membership for nonpayment under Article V(i)(d).

b) Voluntary resignation or withdrawal under Article V(iii) and Article VI.

c) Termination of membership for misconduct (conduct unbecoming), as determined by the Administrator under Article VII.

d) Death.

e) Dissolution of Club Pamoja.

(iii) MEMBERS WITHDRAWAL:

a) A Member may voluntarily withdraw from Club Pamoja at any time except when the Member has received a benefit and has not completed one (1) year from the date of the latest benefit received.

b) A Member who fails to remit dues by the end of the applicable payment period has membership terminated under Article V(i)(d), effective immediately once both conditions in that clause are met.

(iv) FORMAL NOTICE.

"Formal Notice" means a written notice sent by email to the Member's recorded contact address and posted in the Member's official Portal record on the Club Pamoja Portal. A Formal Notice shall identify: (a) the reason for the notice; (b) the amount due, if applicable; (c) the relevant payment deadline and time zone; (d) how to pay or raise a dispute; (e) the consequence that may follow if the matter remains unresolved; and (f) the date and method of sending. The notice date is the date on which the Portal message and the email are dispatched, and the Administrator shall retain the available records. WhatsApp, including the official Club Pamoja WhatsApp community, may be used for supplementary reminders and general member communications but does not replace the required email and Portal channels for Formal Notice.

(v) PAYMENT DISPUTES AND CHARGEBACKS.

a) A chargeback, payment dispute or processor reversal does not by itself establish misconduct and does not automatically trigger termination of membership.

b) The Administrator shall notify the Member of the known transaction amount, the reason for the notice and the available method for responding.

c) The Member has ten (10) calendar days from the notice date to respond or to resolve any undisputed outstanding obligation, unless applicable law or the payment processor's rules require a different procedure.

d) Where a transaction remains disputed, the Administrator shall document and review the dispute and its outcome. The dispute itself is not treated as final nonpayment.

e) If a transaction is reversed and an obligation remains unpaid after the applicable payment period, Article V(i)(d) applies only after a Formal Notice has been sent and its conditions are met.

f) No chargeback penalty, additional fee or automatic permanent exclusion applies, and nothing in this Article waives any cardholder right or other legal right of a Member.

ARTICLE VI. FEES, REFUNDS, WITHDRAWAL AND READMISSION

(i) SCHEDULE OF AMOUNTS.

The amounts payable under these Bylaws are:

a) Application fee: $20, one time, due at application, non-refundable, except where a refund is required by applicable law. Purpose: the initial audit of Identity and Beneficiary documents.

b) Activation (membership) fee: $60, one time, due after successful verification and before activation, non-refundable, except where a refund is required by applicable law. Purpose: activating Membership.

c) Bereavement contribution for a covered registered immediate family member: $30 per Participating Member, due as set out in V(i)(b), subject to eligibility and program rules. Contributions are non-refundable, except where a refund is required by applicable law or payment-provider rules. Payment disputes and reversals shall be handled in accordance with Article V(v).

d) Bereavement contribution for the death of a Member: $90 per Participating Member, due as set out in V(i)(b), subject to eligibility and program rules. Contributions are non-refundable, except where a refund is required by applicable law or payment-provider rules. Payment disputes and reversals shall be handled in accordance with Article V(v).

e) Readmission fee: $200, payable by a former Member who is readmitted after voluntary withdrawal under Article VII(i)(j), non-refundable, except where a refund is required by applicable law. It is the only fee payable for readmission and replaces (it is not added to) the $20 Application fee and the $60 Activation fee.

f) Administrative deductions: $3 per participating Member's contribution for the death of a covered, registered immediate family member, and $5 per participating Member's contribution for the death of a Club Pamoja Member, as set out in Article IX(ii). These are separate from, and do not include, third-party payment processing fees.

g) No fee other than those listed in this Article and Article IX(ii) is payable under these Bylaws.

(ii) NON-REFUNDABLE FEES.

The Application fee of $20, the Activation fee of $60, and the Readmission fee of $200 are non-refundable, except where a refund is required by applicable law.

(iii) NO OTHER REFUND EXCEPTION.

The only exception to Article VI(ii) is a refund required by applicable law. The Administrator has no discretion to approve any other refund of these fees. These fees are distinct from bereavement contributions and from third-party payment processing fees.

(iv) REFUND REQUESTS, PAYMENT DISPUTES AND RESIGNATION ARE SEPARATE MATTERS.

A refund request, a card or ACH payment dispute (chargeback) and a resignation or withdrawal each have a separate effect under these Bylaws. None of them by itself entitles a person to a refund of the Application fee, the Activation fee or the Readmission fee, except where a refund is required by applicable law, and none automatically produces the same outcome as another. Payment disputes are handled under Article V(v).

(v) READMISSION.

(a) Voluntary withdrawal: a former Member may be readmitted under Article VII(i)(j) after six (6) consecutive months, and the Readmission fee of $200 is the only fee payable for readmission; the returning Member does not pay the $20 Application fee or the $60 Activation fee again, and no additional application, activation or readmission charge applies. The Readmission fee is non-refundable, except where a refund is required by applicable law. (b) Termination for nonpayment:

see Article VII(i)(k); the six-month period and the $200 fee do not automatically apply. (c) A Member whose membership was terminated for misconduct is not eligible for readmission under Article VII(i)(i).

(vi) CONTRIBUTIONS ARE NOT FEES TO CLUB PAMOJA.

Bereavement contributions are collected for the beneficiary and are distinct from the Application, Activation and Readmission fees. Deductions from a Campaign are limited to those described in Article IX(ii).

ARTICLE VII. CODE OF CONDUCT

(i) EVERY MEMBER OF Club Pamoja SHALL:

a) Abide by all provisions of these Bylaws.

b) Use the social network group for official and intended purposes ONLY.

c) NOT POST or FORWARD any messages from NON-MEMBERS.

d) Due to the enormity of the task to mobilize Members, send ALL condolence messages directly to the bereaved Member(s) and NOT on the Club Pamoja forum.

e) NOT use the forum as a marketing or soliciting platform, under any circumstances.

f) Posting any other information or material is grounds for termination of membership (with a penalty, where appropriate). If a Member deliberately violates this requirement as a means of seeking termination of membership, especially after being a beneficiary of Club Pamoja efforts, the Member may be required to reimburse any benefits received, to the extent permitted by law.

g) Except as provided above, any Member may voluntarily withdraw from membership, except when a Member has been previously supported as shown in Article V(iii)(a).

h) Members may be held responsible for making false or fraudulent claims and risk disciplinary action including termination of membership as well as legal action.

i) A Member whose membership has been terminated for misconduct under this Article shall be permanently ineligible for readmission.

j) A Member who voluntarily withdraws from Club Pamoja may be readmitted after six (6) consecutive months outside Club Pamoja. The six-month period begins on the date the Administrator officially acknowledges the Member's exit by email. The Readmission fee of $200 is the only fee payable for readmission; the returning Member does not pay the $20 Application fee or the $60 Activation fee again. The Readmission fee is non-refundable, except where a refund is required by applicable law.

k) Readmission following termination for nonpayment. A former Member whose membership was terminated for nonpayment may be considered for readmission only after (1) the outstanding balance or payment dispute is resolved, and (2) the Administrator confirms that

the former Member satisfies the applicable eligibility requirements. The six-month period in clause (j) does not automatically apply, and the $200 Readmission fee does not automatically apply unless these Bylaws expressly establish that fee for this situation.

ARTICLE VIII. ADMISSION OF NEW MEMBERS

(i) ADMISSION OF NEW MEMBERS:

a) Admission of new Members shall occur on a rolling basis until the Chapter reaches its capacity of five hundred and one (501) Members per Chapter, or as otherwise determined by the Administrator.

b) Referrals are encouraged. An applicant is not required to be seconded by a Member. The application form asks, "Were you referred by a current member?" and, if the applicant answers yes, requires the referring Member's full name. A referral is not a condition of applying or joining.

c) All prospective Members MUST include their Month/Year (MM/YYYY) of birth on the application and upload a valid government-issued ID. Failure to provide accurate age or identity documentation shall disqualify the applicant from Membership.

d) Activation and when eligibility begins. Membership is activated, and the "Activation Date" occurs, when the Administrator records on the Portal that the applicant has (1) been verified, (2) paid the Activation fee, and (3) submitted the signed Bylaws and the Beneficiary Form. Membership rights and obligations begin on the Activation Date, except that eligibility for benefits begins on the membership eligibility start date. For purposes of these Bylaws, the membership eligibility start date is the date the Administrator sends the welcome email following activation, as recorded in the official system. The welcome email follows activation, and the date it is opened or read is not relevant. No additional waiting period applies. Eligibility does not guarantee payment or assistance; any assistance remains subject to event validation, participation, contributions and the other requirements of Article II(iii), Article IV and Article V.

ARTICLE IX. MANAGEMENT AND ADMINISTRATION

(i) OPERATIONAL GOVERNANCE:

a) Club Pamoja is owned and operated by AvariHQ LLC (the "Administrator"). The Administrator administers the program only to the extent supported by the actual arrangement and approved documentation, and provides digital infrastructure and administrative services.

(ii) ADMINISTRATIVE SERVICE FEES AND COMPENSATION:

a) In recognition of the administrative, technical and operational requirements of secure and transparent fund mobilization, the following applies:

i. Administrative deductions: $3 per participating Member's contribution for the death of a covered, registered immediate family member, and $5 per participating Member's contribution for the death of a Club Pamoja Member, charged per bereavement Campaign.

ii. Third-party payment gateway fees (including credit card, debit card and ACH processing fees) associated with collecting funds shall apply.

iii. The Administrator shall deduct the administrative deductions in (i) and, separately, the third-party payment processing costs in (ii) from the recipient's gross total before final disbursement. The administrative deductions do not include third-party processing fees.

iv. The final net payout shall be distributed through the payment processor or financial institution designated under Article V(i)(c) to the benefiting Member or the legally designated fiduciary.

(iii) GENERAL PROVISIONS (DIGITAL PLATFORM AND COMMUNICATION):

a) Club Pamoja shall maintain a secure website (www.clubpamoja.com) and the Member Portal (app.clubpamoja.com) as the primary utility for all applications, document storage and invoicing. The Portal shall be operated in accordance with these Bylaws and any additional security protocols designated by the Administrator.

b) Club Pamoja maintains an official WhatsApp community for supplementary member communications and urgent notifications. The Club Pamoja Portal remains the official record for membership matters, payments, submissions, compliance, and formal notices, as provided in these Bylaws. WhatsApp messages do not replace required submissions, records, or Formal Notices through the Portal and other designated official channels. Members must not forward, disclose, publish, or otherwise share confidential information obtained through the WhatsApp community or the Portal with non-members without proper authorization, except where disclosure is required by law or is otherwise legally protected. Members must respect the privacy of fellow Members and protect personal, financial, beneficiary, and bereavement-related information.

c) All Member information, including government IDs and beneficiary details, is private and confidential. A Member found to have shared sensitive data with third parties in violation of this policy is subject to disciplinary action, which may include termination of membership and forfeiture of benefits.

(iv) AMENDMENTS:

a) Amendments to these Bylaws take effect only after thirty (30) calendar days' advance written notice to Members through the Formal Notice channels in Article V(iv), subject to applicable law and any required approval process. The notice shall summarize the proposed change and identify its intended effective date.

b) A new version of these Bylaws does not alter documents already signed by a Member. Each Member's signed copy is preserved as the record of what that Member agreed to, and a revised version binds a Member only as provided in this Article.

(v) GOVERNING LAW:

These Bylaws are governed by the laws of the State of Maryland, subject to applicable law.

(vi) INTERNAL DISPUTE-RESOLUTION PROCEDURE.

a) A Member may submit a written complaint through the Portal or the designated Club Pamoja email address.

b) The Administrator will acknowledge the complaint and review the relevant records.

c) The Administrator will provide a written response within fifteen (15) business days where reasonably practicable. If more time is needed, the Member will be informed of the delay.

d) If the matter remains unresolved, the parties may pursue voluntary mediation with a neutral mediator.

e) Nothing in this procedure waives or limits any right of a party to pursue a claim before a court with proper jurisdiction, subject to applicable law. This procedure is not mandatory arbitration, and these Bylaws do not designate a court venue.

ATTESTATION AND SIGNATURE

By signing below, I acknowledge that I have read, understood and voluntarily agreed to the Club Pamoja Member Bylaws. I understand that my participation is a commitment to my community and that my eligibility for support is contingent upon my continued fulfillment of contribution obligations. I understand that the Application fee ($20), the Activation fee ($60) and the Readmission fee ($200) are non-refundable, except where a refund is required by applicable law, as stated in Article VI, and that eligibility does not guarantee payment or assistance, which remains subject to Article II(iii) and the other requirements of these Bylaws.

Member name (printed): _____

Signature: _____

Date signed: _____